

25STCV14153 25STCV14153

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-28

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Case Number: 25STCV14153 Hearing Date: August 28, 2026 Dept: 617

Dept.

617

Date:

8-28-26

Case

#: 25STCV14153

Trial

Date: None Set

DEMURRER

MOVING

PARTY: Defendants, David Hanna and JAW Properties LLC

RESPONDING

PARTY: Plaintiffs, Fiyer Stiven Fitzgerald Salcedo, Johanna Alicia Hernandez Pena, Lorena Sanchez Castro, and Ronaldo Stiven Hernandez Pena

RELIEF

REQUESTED

Demurrer

to Fifth and Eighth Causes of Action in Complaint

SUMMARY

OF ACTION

Plaintiffs

Fiyer Stiven Fitzgerald Salcedo, Johanna Alicia Hernandez Pena, Lorena Sanchez Castro, and Ronaldo Stiven Hernandez Pena filed the instant habitability action against Defendants DJ & E Properties, LLC, JAW Properties LLC, David Hanna, and Mary Hanna. Plaintiffs assert causes of action for: (1) Breach of Implied Warranty of Habitability; (2) Breach of Statutory Warranty of Habitability; (3) Breach of the Covenant of Quiet Enjoyment; (4) Negligence; (5) Violation of Civil Code Section 1942.4; (6) Private Nuisance; (7) Violation of the Los Angeles County Tenant Protection Ordinance; and (8) Violation of Unfair Competition Law.

RULING: Sustained in part.

Defendants David Hanna and JAW Properties demur to the fifth and eighth causes of action in Plaintiffs' complaint for violation of Civil Code section 1942.4 and violation of Unfair Competition Law (UCL), arguing that Plaintiffs fail to state their claims. Plaintiffs oppose the demurrer, maintaining the sufficiency of the allegations in support of their claims. Defendants' demurrer is sustained with leave to amend as to the section 1942.4 claim and overruled as to the UCL cause of action.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) "If the complaint states

a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38.)

Fifth Cause of Action: Violation
of Civil Code Section 1942.4

Defendants argue that Plaintiffs fail to state a cause of action for violation of Civil Code section 1942.4 because they fail to identify the details of the agency citation, whether the cited conditions were abated within the statutory period, and whether Plaintiffs were responsible for the condition.

Under Civil

Code section 1942.4, “a residential landlord may not demand or collect rent, increase rent, or serve a three-day notice to pay rent or quit if (1) the dwelling is untenable as defined under section 1941.1, is in violation of section 17920.10 of the Health and Safety Code, or is deemed and declared substandard under section 17920.3 of the Health and Safety Code; (2) a public officer inspects the premises and gives the landlord written notice that it must abate the nuisance or repair the property; (3) the conditions have not been remedied within 35 days of the notice; and (4) the substandard conditions were not caused by the tenant’s acts or omissions.” (Erlach v. Sierra Asset Servicing, LLC (2014) 226 Cal.App.4th 1281, 1298; Civ. Code, § 1942.4, subd. (a).) “A landlord who violates this section is liable to the tenant or lessee for the actual damages sustained by the tenant or lessee and special damages of not less than one hundred dollars (\$100) and not more than five thousand dollars (\$5,000).” (Civ. Code, § 1942.4, subd. (b)(1).)

The

demurrer to the section 1942.4 claim is sustained. Plaintiffs allege on information and belief that “Defendants violated Civil Code section 1942.4 by demanding rent, collecting rent, issuing a notice of a rent increase and/or issuing a three-day notice to pay rent or quit after not correcting conditions cited by government housing enforcement agencies within 35 days of issuance of the citation.” [Compl. ¶ 32.] To the extent Plaintiffs rely on unspecified inspections, continuing defects in the property, and Defendants’ alleged failure to disclose the existence of citations, Plaintiffs still do not allege that they were not the cause of the substandard conditions. [Id. ¶ 33.]

Because there is a reasonable possibility that Plaintiffs can amend their complaint to cure this defect, they are granted leave to amend.

Eighth Cause of Action: Violation of Unfair Competition

Law

Defendants

argue that Plaintiffs' unfair competition claim fails because they do not allege which statutes or ordinances were violated, the acts constituting the violation, and how those violations constitute ongoing business practices.

The

demurrer to the unfair competition claim is overruled. Plaintiffs allege that Defendants' failure to remedy the uninhabitable conditions in the property violated numerous Civil Code and Health and Safety Code provisions. [Compl. ¶ 46.] Contrary to Defendants' claim, "even a single act may create liability" for violation of the UCL. (United Farm Workers of America, AFL-CIO v. Dutra Farms (2000) 83 Cal.App.4th 1146, 1163.) The demurrer to this claim is therefore overruled.

Plaintiffs

are granted 30 days' leave to amend. Plaintiffs may only add facts in support of the successfully challenged section 1942.4 claim. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiffs decline or fail to file an amended complaint, David Hanna and JAW Properties shall answer the operative complaint within 10 days of the lapsed deadline. Any new causes of action outside the scope of the order may be addressed via a motion to strike.

David

Hanna and JAW Properties to give notice.